ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	126th Commission Meeting
DATE:	03 May 2023
TIME:	02:00 PM
VENUE:	*Druk Dradhir Khang*

#	AGENDA	DISCUSSION
1	*The Assistant HRO updated the Commission on the decisions of the 96th HRC meeting as follows:* • *The officials who were selected through the Bhutan Civil Service Examination 2022 in the Administrative Services have completed phase II of the Foundational In-service Training (FIT) and are now required by the RCSC to complete an applied research project simultaneously with the office work. To this, while the Royal Institute of Management will guide the officials, the HRC directed the Department and Division concerned to guide the officials.* • *The nomination of Mr. Tenzin Phuntsho, Offtg. Director, DoPE for the Executive Certificate Course for Strategic Management of Anti-Corruption Programme 2023 which will be held from June 19-23, 2023 in Malaysia.* • *Approval of the Evaluation and Assessment Division's proposal to conduct training on R programming with further directive to include participants from the PPD. Bhutan Interdisciplinary Research & Development (BIRD) has been selected through the tender to provide the training.* • *Ms. Shacha Wangmo (who separated from the ACC in September 2020) couldn't process her separation*	**The Commission noted the decisions of the HRC. Besides, other directions of the Commissions are:** • **HRS to find out on the Global Positioning System (GPS) training initially proposed to be conducted for the staff of the DoI.** • **HRS to prepare office order regarding the reconstitution of members for the HRC, emphasizing on the rationality of the decision and directed to copy the it to the RCSC.** • **HRS to announce the vacancy for the remaining vacant positions including those in the support and supervisory category.** **In contrast to the significant role the Head of the Division needs to play added to the increasing focus of the Commission on the intelligence function, the incumbent Head of DARe is increasingly feeling that his attention to work as the Head has been inadvertently compromised in view of the domineering personal issues. Thus, the individual has shared his willingness with the Commission to relinquish his position as the Head of the Division. The Commission acknowledging the concerns shared by the individual and being cognizant of the personal tribulations, decided to consider the submission. Consequently, the**

	benefits as she couldn't produce Relieving Order. While the individual has filed Vacation of Office during her separation as required by the Asset Declaration Rules, she later requested Administrator to return her filing as she missed out one of the bank details. In doing so, her account became inactive, and couldn't file the assets resulting in denial of Relieving Order. The individual has submitted an application on April 3, 2023 after which she could file her Asset Declaration with the assistance from the ADMD. The HRC decided that as long as the individual has complied with the ADR, the relieving order can be issued and directed HRS to ensure clear communication with the ADMD. • *Relieving of the Finance and Accounts personnel to the Cluster Finance Services w.e.f May 1, 2023.* • *The Committee decided to appoint Director, DoI as the Chairperson of the HRC for an interval of six months after which Director, DoPS will succeed. In addition, when the Director, DoI chairs the Committee, Mr. Sonam Drukpa, Chief IPO of DoI will be the member and similarly when Director, DoPS chairs, a Chief from the DoPS will represent as the member. Such arrangement is to ensure representation from the Department and ensure neutral stand of the Committee Chairperson while making decisions. Further, the Committee decided to include three Regional Directors as the members. Regarding the frequency of the meeting, it is to be maintained status quo.*	**Commission directed member secretary of the HRC to put the nomination of the new Head of DARe as one of the agenda in the next HRC. In this regard, while the ultimate decisions can be taken by the HRC, the Commission recommends Phuntsho Namgay, Sr. IPO, DARe to be appointed as the Head, DARe given the seniority and rich experience. Subsequently, the operational details as to how to strategize its human resource to be determined at the Division level.**
2	Update on meeting with the Focal Commissioner of the RCSC on the IVS – Director, DoPS *The Director, DoPS apprised that the focal Commissioner of the RCSC during the meeting sought clarification on whether the Integrity Vetting Report is mandatory for entire civil servants or for the selection,*	**Noted**

	recruitment, promotion, nomination, and appointment of P1 and above position. To this, the Director clarified that the Report is mandatory only for selection, recruitment, promotion, nomination, and appointment of P1 and above position while it is optional for other civil servants. In addition, the Director also apprised the Commission on the discussion they had regarding the system which will be developed by the RCSC that can facilitate expeditious and seamless generation of the IVR for civil servants while strictly following the ACC's established process for the report generation.	
3	Present the review of the Citizen Report on the quality of Justice Services – PPD & EAD *The PPD & EAD presented the findings of the Citizen Report on the Quality of Justice Services which primarily measures the satisfaction of the citizens on the services provided by the justice sectors. The report which is the first of its kind in the country and conducted by the Bhutan Transparency Initiative assessed seven justice institutions.*	**Noting the specific recommendations of the report to the ACC, the Commission directed the following:** • **PPD to stock take findings of all similar reports and determine practical plans of actions;** • **PPD to explore different local radio stations, local cable operators including social media group chats (WeChat) for larger dissemination of the anti-corruption programmes to the grass-root.** • **Stock take the existing legal frameworks and other policy documents on the whistle blower/witness protection, and confidentiality and review what we can do to improve it.** • **PPD and DoPE to look for suitable prevention and education programmes where the Commission can partake for dissemination especially through different mainstream radio stations.**
4	Any others: - Update on the CPIB visit – PPD *The PPD based on the suggestion of the delegates has canceled the programme initially planned for Sunday. The same and associated changes effected in the programme were presented to the Commission.* - Update on the ACC Escrow Account – EMD *The EMD provided the monthly update on*	**Noted** **The Commission noted the latest deposits in the Escrow Account. Further, the Department was directed to**

	the status of the ACC Escrow Account.	**deposit/transfer the secured amount that need not have to be paid back into the Government Revenue Account. To this, the Department was directed to put the agenda in the Finance Committee to deliberate on the timeline to deposit/transfer the secured amount into the Government Revenue Account.**
	- Release of properties in the name of Lam Tshering Wangdi – CFD *Following the decision of the Office of the Attorney General to drop the charges against Lam Tshering Wangdi and not prosecute, the ACC received a letter from the OAG dated 1 May, 2023 recommending the ACC to release the seized properties registered in the name of Lam Tshering Wangdi and those registered in the sole ownership of his relatives who are not being charged.*	**Given that the term 'release' used by the OAG in its letter is ambiguous and doesn't adequately communicate whether ACC can hand over the seized properties to the owner or to the OAG, the Commission directed CFD to communicate with the OAG on the matter and bring clarity as to whom the seized properties must be handed over to.** **Further, the Commission directed DoPS to ensure that any individual who visits the office to claim the seized properties on behalf of Lam produces power of attorney and copy of seizure lists.**
	- Request to defreeze land – CFD *An individual has written to the ACC requesting to defreeze the land frozen in relation to case 15/2018 after the case has been acquitted by the Supreme Court.*	**Directed to write back to the individual acknowledging the receipt of the letter and stating that the case is under further review by the Commission.**

Commissioner **Commissioner** **Chairperson**

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